

HOUSE JOINT RESOLUTION 809

By Hill

A RESOLUTION to propose an amendment to Article II, Section 28, of the Constitution of Tennessee, relative to taxable property.

BE IT RESOLVED BY THE HOUSE OF REPRESENTATIVES OF THE ONE HUNDRED FOURTEENTH GENERAL ASSEMBLY OF THE STATE OF TENNESSEE, THE SENATE CONCURRING, that a majority of all the members of each house concurring, as shown by the yeas and nays entered on their journals, that it is proposed that Article II, Section 28, of the Constitution of Tennessee be amended by adding the following language at the end of the section:

Notwithstanding this section to the contrary, a county or municipality, by a two-thirds vote of the local legislative body of the county or municipality, may make the levying and collection of the tax on all real property, or one or more subclassifications of real property, by the jurisdiction optional or may authorize alternative payment plans, including advanced tax payments or deferred tax payments that include a lien against the title of the property; provided, that the option to not levy and collect the tax must be applied uniformly throughout the county or municipality, as applicable.

BE IT FURTHER RESOLVED, that the foregoing be referred to the One Hundred Fifteenth General Assembly and that this resolution proposing such amendment be published in accordance with Article XI, Section 3 of the Constitution of Tennessee by posting such amendment on the official website of the Secretary of State and on the official website of the General Assembly.

BE IT FURTHER RESOLVED, that the Clerk of the House of Representatives is directed to deliver copies of this resolution to the Secretary of State, with this final resolving clause being deleted from such copies.